

California Diversion Arrest-Sealing Guidance

Superior Court of California, County of San Diego; CENTRAL Division

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield; case SCD000012760

Stage 1 - statewide process guidance. This explanation does not select or generate a local petition outside the supported San Diego scope. Ask the county superior court clerk or self-help center which local form and procedure apply to the court that handled your case. There is no statewide Judicial Council form for this route.

Under the adopted Penal Code 851.90 route, a person who successfully completed superior-court drug diversion under 1000.5 or deferred entry of judgment under 1000 or 1000.8 may seek arrest-record sealing. Obtain proof of the actual program and completion from the court or provider. The judge may order sealing on written or oral motion of any party or on the court's own motion, with notice to all parties. Successful completion does not itself establish that an order has been issued.

This is arrest sealing, not a dismissal, set-aside or expungement. This packet does not determine eligibility under Penal Code 851.87, 1000.4 or 1001.9. Obtain assistance for those branches, disputed completion, prosecutor opposition or a contested hearing. A routine hearing is not itself a refusal to prepare an initial petition.

After an order, 851.92 governs distribution and record updates: the court provides copies to the person and prosecutor, forwards copies to arresting and participating law-enforcement and master local criminal-history agencies within 30 days, and sends DOJ a disposition report identifying the relief statute/date. Retain the actual order and follow up on missing updates. Do not assume an automatic process has happened without the court record.

Stage 2 - county filing is separately limited. The enclosed CRM307 is only for the existing supported San Diego 851.90 successful-completion and dismissal facts. It cannot be reused for another county. Other county-specific petition coverage remains restricted; request that county's instructions or assistance. A specific court request for an additional submission or proposed order controls and must be addressed without fabricating a court document.